

SCDHHS MEDICAID APPEAL PROCESS

If the participant, legal guardian or representative is dissatisfied with the Palmetto Coordinated System of Care (PCSC) waiver enrollment decision, the participant, legal guardian or representative has the right to request an appeal with the State Medicaid Agency, which is the South Carolina Department of Health and Human Services (SCDHHS).

The appeal request may be made electronically using the SCDHHS website indicated below or it may be mailed to SCDHHS. This must be done no later than thirty (30) calendar days after receipt of the PCSC notification.

The purpose of a SCDHHS administrative appeal is to prove error(s) in fact or law pertaining to a decision made and/or action taken by the SC Continuum of Care on behalf of PCSC or by PCSC that adversely affects a waiver participant. The appeal must clearly state the specific issue(s) that are disputed and what action is requested. A copy of the enrollment decision received from PCSC must be uploaded using the SCDHHS website below or included with the mailed appeal.

The, participant, legal guardian or representative is encouraged to file the appeal electronically at www.scdhhs.gov/appeals

OR

The appeal may be submitted by using the number below:

Fax to (803) 255-8206

OR

The appeal request may be mailed to:

**SC Department of Health and Human Services
Division of Appeals and Hearings
P.O. Box 8206
Columbia, SC 29202-8206**

An appeal request to SCDHHS is valid if filed electronically or mailed to the above address and postmarked no later than the thirtieth (30th) calendar day following receipt of the PCSC waiver enrollment determination notification. Unless a valid appeal request is made to SCDHHS, the PCSC enrollment decision will be final and binding.

If a valid appeal request is made, the participant, legal guardian or representative will be advised by the SCDHHS Division of Appeals and Hearings as to the status of the appeal request, which may include a scheduled hearing.

A participant may request an expedited appeal. SCDHHS will grant or deny these requests as quickly as possible. If your request to expedite the appeal is granted, your appeal will be resolved as quickly as possible instead of the standard 90-day timeframe. If the request to expedite is denied, the appeal will follow the standard 90-day timeframe.

SCDHHS may grant expedited review if we determine the standard appeal timeframe could jeopardize the individual's life, health, or ability to attain, maintain, or regain maximum function. SCDHHS may consider, among other facts:

- The medical urgency of the beneficiary's situation
- Whether a needed procedure has already been scheduled
- Whether a beneficiary is unable to schedule a needed procedure due to lack of coverage
- Whether other insurance will cover most of the costs of the requested treatment.

You may request an expedited appeal at the same time you file your appeal request or after you file an appeal. Please state you are requesting an expedited appeal and explain why.

To avoid delays in the process, please submit any supporting documentation with the request for expedited review or immediately thereafter. While supporting documentation is not required, SCDHHS will make its determination based on the information made available at the time we consider the request.